

TENTATIVE RULINGS

DEPARTMENT C33

Judge Sandy N. Leal

September 10, 2026 at 10:00 AM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the Department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5233. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal.App.4th 436, 442, fn. 1 (2012.))

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All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time. All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

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No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	24-01431664 <i>Acevedo vs. El Tapatio Dos Meicano Grill</i>	Motion for Leave to File Amended Complaint Plaintiff Eliet Serna Acevado's Motion for Leave to Amend is DENIED. Under CCP §472, an amended complaint may be filed without leave of court when no answer has been filed. No answer has been filed in this case. Therefore, no leave of court is required to file a first amended complaint in this case. Plaintiff is ordered to file a clean version of the First Amended Complaint forthwith. Personal service of the First Amended Complaint will be required, per Code. This ruling is made without prejudice to the filing of a motion for leave to file an amended complaint if necessary in the future.
2	25-01453685 <i>Adams vs. Colliers International Group, Inc.</i>	1) Demurrer to Amended Complaint 2) Demurrer to Complaint 3) Motion to Compel Production 4) Motion to Compel Production 5) Motion to Strike Portions Of Complaint CONTINUED 10/22/2026 @ 10:00 AM
3	25-01477343 <i>Alphapet, Inc. vs. Wagner</i>	1) Demurrer to Amended Complaint 2) Motion to Strike Portions Of Complaint <u>Motion No. 1:</u> The Demurrer to Second Amended Complaint (SAC) by Defendants Rock LLP, Brian J. Wagner and Amir Farahani is OVERRULED. <u>Procedural History:</u> On 11/20/25, the Court granted Defendants' anti-SLAPP motion to strike the FAC as to paragraphs 35, 36, 41, 53, and 62 but denied the motion as to paragraphs 25 and 26. The Court sustained Defendants' demurrer as to the professional negligence claim with leave to amend and overruled the demurrer as to the claim for violation of Business & Professions Code. On 8/26/26, the Court partially granted Defendants' anti-SLAPP motion regarding the SAC as to paragraphs 19, 20, 21, 23, 26, and 27. The ruling stated in part, "The motion is denied to the extent the SAC seeks to re-allege claims that the Court found were not subject to the SLAPP statute, i.e. paragraphs 25 and 26 which alleged the law firm wrongfully represented certain of the LLC's members and refused to provide information related to its representation of the LLC to the other member. This includes the SAC's paragraphs 15, 18, and portions of paragraph 40 (except paragraph 40's references to making false statements to 'the court'). The motion is also denied as to the 'incorporating' allegations at paragraphs 28 and 32. However, to the

extent discovery reveals any of these allegations are based on protected conduct, they may be subject to dismissal at a later stage.

The motion is granted as to Plaintiff's attempt to re-allege claims which were previously stricken in the 11/20/25 order, i.e. claims which arise from Defendants' filing and service of legal documents and/or asserting certain positions in active litigation. This includes the remaining allegations at paragraphs 19, 20, 21, 23, 26, and 27, which are attempts at 'sham pleading' to avoid the effect of the anti-SLAPP ruling. It also includes the allegation in paragraph 40 that Defendants made 'false representations...to...the court.'"

Therefore, for purposes of this motion the Court disregards those allegations which have been stricken from the SAC.

First Cause of Action – Professional Negligence:

In this claim, Plaintiff alleges the attorney Defendants were disloyal to its client, the Plaintiff LLC. (SAC, ¶ 30.) The Court disregards those allegations which were stricken from the SAC on 8/26/26.

Defendants argue this action is in fact being brought on behalf of non-party Homman Holdings, which is using the name of Alphapet, LLC as a sham. Homman already has a separate lawsuit before the Court, Case No. 2024-01403120. Defendants contend, "The consequence of this attempted deception is that the [SAC] when all internally inconsistent and sham allegations are disregarded, cannot establish that AlphaPet is a damaged party. To the contrary, the SAC establishes that Homman is the party who is alleged to have been damaged by Defendants' alleged conduct." (Motion, p. 1.) Defendants further contend Plaintiff did not retain the moving Defendants.

At paragraph 12 of the FAC, Plaintiff alleges that Epps, who was the LLC's General Manager beginning in August 2021, retained Defendant "as early as 2021" to provide legal services to the LLC. (¶¶ 11-12.) As the Court ruled on 11/20/25, this is sufficient to allege the LLC retained moving Defendants as counsel at the pleading stage.

Plaintiff contends that the "SAC alleges that, if defendants had complied with their fiduciary duties, AlphaPet would have been protected from the unauthorized disposition of its assets." (Opp., p. 8.) Defendants have not filed a reply brief responding to this argument. At this stage, the allegation that Defendants' breaches of duty allowed the wrongful transfer of the LLC's assets is sufficient to plead the element of damages.

Finally, Defendants contend that Plaintiff fails to adequately plead their failure to abide by Uniform Commercial Code provisions regarding an alleged "bulk sale" because those provisions are inapplicable. The Court need not reach these allegations because the general allegation that Defendants breached their fiduciary duties by allowing an unauthorized sale of the LLC's assets is sufficient at this stage.

Second Cause of Action – Violations of Business and Professions Code:

This cause of action alleges breach of Business and Professions Code sections 6104 and 6106, which generally prohibit appearing as attorney for a party without authority or committing any act involving moral turpitude, dishonesty or corruption.

Defendants contend, “As to the second cause of action which is premised on a theory that there was a conflict of interest between AlphaPet and the Epps and the Wangs and that defendants intentionally made false statements and concealed material facts from third parties, the alleged conflict of interest is not a conflict of interest at all. To the contrary, the allegations of the FAC and SAC, at most, establish that defendants took direction from the managers of AlphaPet. This is not sufficient to create an actionable conflict of interest. When internally inconsistent allegations are construed against the plaintiff, the SAC fails to allege facts sufficient to demonstrate that the interests of Epps and the Wangs were adverse to the interests of AlphaPet. To the contrary, the allegations demonstrate that AlphaPet and Epps, who was the last alleged manager of AlphaPet during the relevant time period, were working in lockstep. There is no conflict of interest when the represented parties are seeking to accomplish a common goal.” (Motion, p. 8.)

Plaintiffs respond, “The SAC alleges that defendants violated Business and Professions Code sections 6104 and 6106 and Rules 1.7, 4.1, and 8.4 of California’s Rules of Professional Conduct by (1) failing to withdraw or take remedial action despite an actual conflict, (2) becoming adverse to AlphaPet, (3) simultaneously serving adverse clients, (4) making false statements, (5) concealing material facts, and (6) concealing information from AlphaPet’s majority member for more than one year. (SAC, ¶¶ 33-41.)” (Opp. at pp. 10-11.)

At the pleading stage, these allegations are sufficient to state a claim for violation of the Business and Professions Code provisions cited above.

Motion No. 2:

Defendants’ Motion to Strike Portions of the SAC is DENIED.

Defendants seek to strike portions of the SAC which are “outside of the scope of that which was permitted on November 20, 2025 and for which plaintiff did not have leave of Court to amend.” (Notice of Motion, ¶¶ 1-3.)

The 11/20/25 order only allowed leave to amend as to the first claim for professional negligence. Plaintiff’s amendments included new general factual allegations. While Plaintiff is generally not permitted to add new allegations outside the scope of the Court’s prior ruling allowing leave to amend, the Court will allow Plaintiff’s additional amendments for the

		sake of efficiency in order to avoid the necessity of Plaintiff filing an additional motion for leave to amend.
5	25-01459786 Bradley Consulting Group vs. FCA US LLC	Motion to Enforce Settlement Plaintiffs Bradley Consulting Group and Tom Bradley-King’s Motion to Enforce Repurchase Offer and Settlement Agreement is DENIED. Timeliness of opposition Plaintiffs’ opposition is untimely as it was served on 9/4/26 but due on 8/27/26 pursuant to Code of Civil Procedure section 1005, subdivision (b). The court has discretion to accept or reject late-filed or served papers. (<i>See Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker</i> (2016) 2 Cal.App.5th 252, 262 [citing to Cal. Rules of Court, rule 3.1300, subd. (d)].) In its discretion, the Court will consider the late-filed opposition. Legal standard Code of Civil Procedure section 664.6, subdivision (a) provides: “If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” “A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement. A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. The court ruling on the motion may consider the parties’ declarations and other evidence in deciding what terms the parties agreed to, and the court’s factual findings in this regard are reviewed under the substantial evidence standard. If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. The statute expressly provides for the court to ‘enter judgment pursuant to the terms of the settlement.’” (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182-1183 [cleaned up].) Plaintiffs seek to enforce the repurchase offer FCA sent to Plaintiffs on 2/21/24 pursuant to section 664.6.

		On 2/21/24, defendant FCA US LLC (FCA) sent Plaintiffs a repurchase offer letter setting forth a total repurchase amount of \$56,503.19 and states, “If this offer is acceptable, please sign and return this letter . . .” (Abeel Decl., ¶ 2, Ex. A at p. 1.) The repurchase letter is also accompanied by a release agreement that states Plaintiffs agree to release FCA from liability, other than that arising from personal injuries and medical expenses, related to the vehicle as of the date of this Agreement. (Abeel Decl., ¶ 2, Ex. A at p. 3.) Plaintiffs did not sign and return the repurchase offer or the release but informed FAC on 9/26/24 that the total buy back number was approximately \$86,000 and not the \$56,503.19 previously offered. (Abeel Decl., ¶ 3, Ex. B at p. 1.) Counsel further stated, “I need to know we are on the same page as to what the buy back amount is and for what collateral costs.” (<i>Id.</i>) Plaintiffs’ counsel followed up with FCA regarding the repurchase several more times from September 2024 through November 2024 with no response from FCA. (Abeel Decl., ¶ 4, Ex. C.) On 11/13/24, FCA responded to state it would reimburse Plaintiffs for “payments, interest, and registration” but not for “insurance, maintenance, or fuel.” (Abeel Decl., ¶ 5, Ex. C at p. 2.) Plaintiffs followed up with the current registration and Retail Installment Sales Contract on 11/15/24, at which point FCA no longer responded. (Abeel Decl., ¶ 5, Ex. C.) On 7/29/26, FCA sent an itemized offer with a release to Plaintiffs’ counsel for final settlement of this matter. (Lemalu Decl. ¶ 8, Ex. E.) FCA’s counsel was informed Plaintiffs’ counsel was out of the country and would not return to the office until 8/10/26. (Lemalu Decl. ¶ 9.) (While the Lemalu Declaration references an email chain reflecting this correspondence as Exhibit F, that exhibit is not attached.) As stated above, a settlement is enforceable under section 664.6 “only if the parties agreed to all material settlement terms.” Plaintiffs’ declaration and evidence demonstrate the parties did not agree to all material terms, including the repurchase amount, such that a settlement may be enforced under section 664.6. Plaintiffs concede no agreement was made as they state the amount owed to Plaintiffs remains at issue. (Mtn. at 4:11-12.) Defendant also demonstrates the settlement negotiations are ongoing as it sent Plaintiffs’ counsel an offer for final settlement of this matter as recently as 7/29/26 but has not yet received a response. Accordingly, the Court DENIES Plaintiffs Bradley Consulting Group and Tom Bradley-King’s Motion to Enforce Repurchase Offer and Settlement Agreement.
8	24-01375951 <i>LaSorte vs. Ghassemieh</i>	1) Motion for Sanctions 2) Motion for Terminating Sanctions The Court GRANTS the motion of Christina La Sorte for a terminating sanction against defendant Majid Gassemieh dba Ultimate Autoline

		based on defendant's failure to comply with the order of February 27, 2025 that directed him to provide verified supplemental responses to the second and fourth sets of form interrogatories. The Court strikes defendant's answer to the first amended complaint filed on March 25, 2024. (ROA 15.)
9	25-01461247 Mike Bubalo Construction CO,. Inc vs. Yorba Linda Water District	1) Motion to Seal 2) Motion to Strike - Anti SLAPP <u>Motion to Seal</u> Defendants/cross-complainant Yorba Linda Water District and Defendants Reza Afshar and Rosanne Weston's unopposed Motion to Seal Declaration of Reza Afshar and Accompanying Exhibits Pursuant to California Rules of Court, rule 2.550 is GRANTED in part. Defendants/cross-complainant Yorba Linda Water District and Defendants Reza Afshar and Rosanne Weston (collectively, Defendants) move to seal the Declaration of Reza Afshar and its exhibits. The Afshar Declaration discusses and attaches a copy of the District's Evaluation in support of Defendants' anti-SLAPP motion. "A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and declaration containing facts sufficient to justify the sealing." (Cal. Rules of Court, rule 2.551, subd. (b)(1).) To grant a motion to seal, the court must expressly find that: - an overriding interest exists that overcomes the right of public access to the record; - the overriding interest supports sealing the records; - a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; - the proposed sealing is narrowly tailored; and - no less restrictive means exist to achieve the overriding interest. (Cal. Rules Ct., rule 2.550, subd. (d).) The Court finds Defendants have made sufficient showing under California Rules of Court, rule 2.550, subdivision. (d), including an overriding interest to ensure the relief sought by Plaintiffs is not defeated by publicizing the Evaluation prior to the Court or jury's ruling on Plaintiffs' Second Amended Complaint and the request is narrowly tailored to those allegations and exhibits relating to the Evaluation. Paragraphs 14 through 30 of the Declaration of Reza Afshar and its Exhibits C thorough J are ORDERED sealed. <u>Motion to Strike – Anti-SLAPP</u>

Defendants/cross-complainant Yorba Linda Water District and Defendants Reza Afshar and Rosanne Weston's Special (collectively, Defendants) Motion to Strike Pursuant to CCP § 425.16 is DENIED.

Defendants move to strike the second, fourth, and fifth causes of action from Plaintiffs/cross-defendants Mike Bubalo Construction Co., Inc. and Pascal & Ludwig Constructors, Inc.'s second amended complaint, or in the alternative, strike out allegations regarding Defendants' performance evaluations pursuant to Code of Civil Procedure section 425.16.

Plaintiffs' and Defendants' evidentiary objections

The Court declines to rule on the parties' evidentiary objections as unnecessary to the analysis.

Plaintiffs' allegations

Plaintiffs/cross-defendants Mike Bubalo Construction Co., Inc. (Bubalo) and Pascal & Ludwig Constructors, Inc. (Pascal) are construction companies. (SAC ¶¶ 11, 16.) On or about 3/22/24, the Yorba Linda Water District (District) and Pascal entered into a contract for work to be done to be done on a construction project known as Construction of Well 22 Equipping Contract No. J-2009-22 #22 (Project). (SAC ¶¶ 3, 28.) On or about 3/8/22, Bubalo entered into a subcontract agreement with Pascal to perform the installation of the pipeline on the Project. (SAC ¶ 29.)

Plaintiffs allege they informed the District it encountered a differing site condition, including unsafe soil conditions, and the District supported Plaintiffs' proposal to use shorter pipe to address the safety of trench caving. (SAC ¶¶ 31-37.) Plaintiffs allege the District was aware of the soil condition and its detrimental impact on Plaintiffs, the additional labor, services and materials Plaintiffs were providing to the Project to address the soil conditions, and that Plaintiffs were tracking the conditions they encountered during the performance of their work and would submit a request for additional payment. (SAC ¶ 38.)

Plaintiffs further allege the District was also aware multiple gas lines were located on the Project but did not properly mark one of them causing Plaintiffs to expend time and resources to address the unmarked gas line. (SAC ¶ 39.)

Plaintiffs allege that despite knowing about these various issues and that Plaintiffs were incurring expense to deal with them, the District denied Plaintiff's Change Order request on 7/20/23. (SAC ¶ 42.) The District then recorded its Notice of Completion of the Project on 1/16/24, released the final retention payment to Pascal on 2/29/24, and paid Pascal all sums the District believed was due for its work on the Project. (SAC ¶ 42.)

On 5/28/24, the District issued a Contractor's Performance Evaluation (Evaluation) which alleged shoring work on the Project was not done

appropriately and on 6/4/24 demanded a \$82,000 refund from Pascal. (SAC ¶¶ 44, 45.) Plaintiffs allege the Evaluation was issued in bad faith and factually unsupported. (SAC ¶¶ 53-55.) Plaintiffs further allege the District failed to provide Plaintiffs with notice of their Evaluation prior to its issuance and to advise Plaintiffs of any administrative remedies or recourse available in light of the Evaluation. (SAC ¶ 55.)

Timeliness of the motion

Section 425.16, subdivision (f) provides in part, “The special motion may be filed within 60 days of the service of the complaint or, in the court’s discretion, at any later time upon terms it deems proper.”

“[S]ubject to the trial court’s discretion under section 425.16, subdivision (f), to permit late filing, a defendant must move to strike a cause of action within 60 days of service of the earliest complaint that contains that cause of action.” (*Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism* (2018) 4 Cal.5th 637, 640.)

Plaintiffs contend Defendants’ motion is untimely as to the second cause of action for writ of mandate and as to all allegations regarding the Evaluation. Plaintiffs contend Defendants could have moved to strike that claim and those allegations in connection with Plaintiffs’ First Amended Complaint (FAC) but chose not to.

Plaintiffs filed and served the FAC on 4/30/25 (Romero Decl., ¶ 2; ROA 23.) On 6/18/25, counsel for the District sent an email to Plaintiffs’ counsel stating in part:

[W]e intend to file an anti-SLAPP motion under CCP §425.16 as to plaintiffs’ causes of actions for ‘interference with perspective economic advantage’ and writ of mandate. The anti-SLAPP motion will assert that those two causes of action arise from the District’s performance evaluation in furtherance of the District and Mr. Afshar’s right of free speech under the United States Constitution or the California Constitution in connection with a public issue. To avoid such law and motion, we encourage plaintiffs to dismiss those two causes of action. Please let us know if you intend to dismiss these causes of action by the close of business on June 23, 2025. Our anti-slapp motion, and our demurrer and motion to strike are due on June 30, 2025.

(Romero Decl., ¶ 2, Ex. A.)

On 6/23/25, Plaintiffs’ counsel responded to state in part, “Plaintiffs agree to dismiss only the 4th Cause of Action for Intentional Interference with Economic Advantage. We will continue to prosecute all other causes of action.” (Romero Decl., ¶ 26; Ex. N [emphasis in original].)

The District’s counsel responded to state in part, “Thank you for your correspondence and agreement to dismiss the Fourth Cause of Action

for Interference with Prospective Economic Advantage. Please file a request for dismissal as to the Fourth Cause of Action tomorrow.” (Romero Decl., ¶ 27, Ex. N.)

The District then filed this anti-SLAPP motion on 3/30/26, after Plaintiffs had filed their SAC.

With respect to the second cause of action for writ of mandate, the FAC and SAC contain the identical allegation that Plaintiffs are seeking “a peremptory writ of mandate compelling the Defendants to exercise their discretion in a manner that comports with law, thereby requiring them to withdraw or modify their Performance Evaluation.” (FAC ¶ 5; SAC ¶ 5.)

Defendants also do not dispute Plaintiffs’ FAC included allegations regarding the Evaluation, many of which are repeated in the SAC verbatim. The FAC includes the same allegations, for example, that Defendants issued the Evaluation “which alleged that shoring work on the PROJECT was not done appropriately” (FAC ¶ 44; SAC ¶ 44) and that the Evaluation was issued in bad faith (FAC ¶ 52; SAC ¶ 53.)

When served with the FAC, Defendants initially stated they would file an anti-SLAPP motion as to the second cause of action (along with the fourth cause of action). Plaintiffs responded to state that while they would dismiss the fourth cause of action, they would “continue to prosecute all other causes of action.” Following this exchange, Defendants made the conscious decision not to file an anti-SLAPP motion regarding the cause of action for writ of mandate or as to any of the allegations regarding the Evaluation until this motion nine months later.

In their motion, Defendants rely on *Lam v. Ngo* (2001) 91 Cal.App.4th 832, 840, which concluded “the complaint” in section 425.16, subdivision (f) may include amended complaints. Defendants rely on *Lam*’s reasoning that “[i]t would make no sense to read ‘complaint’ to refer to an earlier complaint that contained no anti-free-speech claims, but not allow such a motion for a later complaint that had been amended to contain some.” (*Id.* at p. 841.)

As stated, in *Lam*, however, this interpretation allows a party to make a motion in connection with a later complaint that has been amended where the initial complaint “*contained no anti-free-speech claims.*”

Here, Defendants do not dispute the FAC contained the same alleged anti-free-speech claims (i.e., regarding the Evaluation) and the same second cause of action for writ of mandate. Rather, Defendants contend the cause of action for writ of mandate did not seek monetary damages so Defendants “used their judgment not to expend scarce judicial resources to challenge Plaintiffs’ FAC under the anti-SLAPP statute, particularly since Plaintiffs’ Writ of Mandate cause of action could have been, and was, challenged (successfully) by Defendants on demurrer.”

(Mtn. at 2:22-26.) This further demonstrates Defendants considered initially making the motion but ultimately decided not to proceed.

Given the above, the Court finds this motion as to the second cause of action and to all allegations related to Defendants' Evaluation is untimely.

The Court therefore DENIES the motion as to the second cause of action and to all allegations related to Defendants' Evaluation.

The Court discusses the motion as to the fourth and fifth causes of action below.

Legal standard

"A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (Code Civ. Proc., § 425.16, subd. (b)(1).)

"Litigation of an anti-SLAPP motion involves a two-step process. First, 'the moving defendant bears the burden of establishing that the challenged allegations or claims 'aris[e] from' protected activity in which the defendant has engaged.' Second, for each claim that does arise from protected activity, the plaintiff must show the claim has "at least 'minimal merit.' If the plaintiff cannot make this showing, the court will strike the claim." (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009 [cleaned up].)

Protected activity

Section 425.16, subdivision (e) defines protected activity to include: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest."

"At this first step, courts are to 'consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.'" (*Bonni, supra*, 11 Cal.5th at p. 1009 [citation omitted].) "The defendant's burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity." (*Ibid.* [citation omitted].)

Defendants contend the first prong is satisfied as Plaintiffs' causes of action are based on Defendants' preparation of the Evaluation, which Defendants contend is protected activity.

Section 425.16, subdivision (e)(4)

Defendants rely on section 425.16, subdivision (e)(4), which protects "any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest."

Defendants contend issues in the Evaluation that are of public interest include whether (a) Plaintiffs had "on the job" safety violations, (b) Bubalo used appropriate shoring methods, and (c) the Project was delayed. Defendants contend issues of public interest relate to the cost and risk to the District ratepayers and ratepayers/taxpayers at other public agencies of whether to contract with Plaintiffs on future public projects. Defendants further contend the Evaluation relates to protecting ratepayers from awarding contracts to bidders who are not responsible bidders.

The "catchall provision" of section 425.16, subdivision (e)(4) "demands 'some degree of closeness' between the challenged statements and the asserted public interest." (*Film On.com Inc. v. DoubleVerify Inc.* (2019) 7 Cal.5th 133, 150 [citation omitted].) "What it means to 'contribute to the public debate' will perhaps differ based on the state of public discourse at a given time, and the topic of contention." (*Id.* at pp. 150-151 [citation omitted].) Ultimately, the court's inquiry "does not turn on a normative evaluation of the substance of the speech. [The court is] not concerned with the social utility of the speech at issue, or the degree to which it propelled the conversation in any particular direction; rather, [it] examines whether a defendant—through public or private speech or conduct—participated in, or furthered, the discourse that makes an issue one of public interest. (*Id.* at p. 151 [citations omitted].) "[I]t is not enough that the statement refer to a subject of widespread public interest; the statement must in some manner itself contribute to the public debate." (*Wilbanks v. Wolk* (2004) 121 Cal.App.4th 883, 898 [citations omitted].)

Defendants fail to demonstrate how the Evaluation "contribute[s] to the public debate."

Defendants state, "the *audience* of the District's Performance Evaluation is the District's ratepayers and the ratepayers or taxpayers at other public agencies who may contact the District for a reference check regarding Pascal and/or Bubalo." (Mtn. at 5:21-23 [emphasis in original].) As such, Defendants do not demonstrate there is any public discourse regarding Plaintiffs' performance or even the issue broader issue of contractor performance other than a hypothetical situation in which members of the public or other public agencies "may contact" the District at some point in the future for a reference check.

While Defendants further contend the Evaluation may “preserve the District’s institutional memory of Plaintiffs’ performance” on the project at issue for the District’s consideration when considering future bids by Plaintiffs” (Mtn. at 5:28-6:3), this again involves the District’s internal consideration regarding any hypothetical future bids by Plaintiffs rather than public consideration or debate.

In “addressing the specific nature of defendants’ speech and its relationship to the matters of public interest [the court] cannot answer this second question simply by looking at the content of the challenged statements.” (*Film On.com Inc.*, *supra*, 7 Cal.5th at p. 152.) Rather, the court may answer that question “only by looking at the broader context in which [the defendant] issued its reports, discerning through that context whether the company’s conduct qualifies for statutory protection by furthering the public conversation on an issue of public interest.” (*Id.* at p. 153 [citation omitted].) Though no single element is dispositive, the court may consider whether the information “never entered the public sphere, and the parties never intended it to.” (See *ibid.*)

Defendants do not demonstrate the evaluation was disclosed beyond its issuance to Plaintiffs. Rather, Defendants contend “if the District were to determine that Pascal and/or Bubalo are not responsible bidders on a future District project, then a responsibility hearing is required. The District’s Performance Evaluation on Well 22 Project was prepared preliminary to and in connection with such a responsibility hearing for Pascal and Bubalo if the District deems Plaintiffs to be nonresponsible bidders on future District public projects.” (Mtn. at 8:19-23.)

Thus, based on Defendants’ sequence of events, for the Evaluation to come into consideration Plaintiff would have to first bid on a project, then be rejected on the specific ground that they are determined by the District to be a “non-responsible bidder,” which would then require notice to Plaintiffs and an opportunity for Plaintiffs to be heard during a responsibility hearing at which time the Evaluation could be used in connection with that hearing. (See Mtn. at 8:5-18). Defendants do not contend they currently deem Plaintiffs to be nonresponsible bidders but that they may do so in the future should Plaintiffs bid on any future projects for the District.

Accordingly, Defendants’ contentions regarding the Evaluation’s potential disclosure and use in the public forum do not demonstrate a sufficient “degree of closeness” between the Evaluation and the asserted public interest to merit anti-SLAPP protection.

Section 425.16, subdivision (e)(2)

Section 425.16, subdivision (e)(2) defines as protected activity “any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law.”

		Alternatively, Defendants contend the Evaluation is in connection with issues under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law. In doing so, Defendants make the same arguments addressed above, that is, that the Evaluation is prepared in connection with a potential responsibility hearing regarding Plaintiffs should they be denied a bid in the future based on the District deeming them to be nonresponsible bidders. As such, Defendants have not demonstrated there is any issue “under consideration or review” in any proceeding, official or otherwise, other than a potential responsibility hearing that may occur if the specific sequence of events set forth above happens to take place. While Defendants rely on <i>Hansen v. Dept. of Corrections & Rehabilitation</i> (2008) 171 Cal.App.4th 1537, 1544, the statements at issue were made during an internal investigation, which the court found itself to be an official proceeding. Additionally, <i>Ojje v. Brown</i> (2019) 43 Cal.App.5th 1027 did not involve a discussion of section 425.16, subdivision (e)(2). As the Court does not find Defendants have met their burden of establishing the Evaluation is protected activity, the Court does not address the second prong.
10	23-01302857 <i>Providence Capital Funding, Inc. vs. Team MMJ Trucking LLC</i>	Motion to Accept Late Filing Defendants’ Motion for Court to Accept Late Filing of Defendants’ Opposition to Plaintiff’s Motion for Summary Judgment is GRANTED. Defendants Team MMJ Trucking, LLC, Mike Springer and Tonya Springer move the Court to accept the late filing of their opposition to Plaintiff’s motion for summary judgment or, alternatively, summary adjudication. Defendants seek mandatory relief under Code of Civil Procedure section 473, subdivision (b). A motion for mandatory relief must be made no more than six months after entry of judgment and be accompanied by an attorney’s sworn affidavit attesting to the attorney’s “mistake, inadvertence, surprise or neglect” and a copy of the proposed pleading to be filed. (Code Civ. Proc., § 473, subd. (b).) The attorney affidavit of fault must contain a “straight forward admission of fault.” (<i>State Farm Fire & Casualty Co. v. Pietak</i> (2001) 90 Cal.App.4th 600, 610.) But it need not contain an explanation of the reasons for the attorney’s mistake, inadvertence surprise or neglect. (<i>Martin Potts & Assocs., Inc. v. Corsair, LLC</i> (2016) 244 Cal.App.4th 432, 438-441.) Therefore, relief must be granted, even if the attorney’s error was inexcusable, “unless the trial court finds the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.” (<i>Ibid.</i>)

		If mandatory relief is granted, the court must “direct the attorney to pay reasonable compensatory legal fees and costs” to the opposing counsel or parties. (Code Civ. Proc., § 473, subd. (b).) The court may also order the offending attorney to pay monetary sanctions up to \$1,000 to the opposing party, or up to \$1,000 to the State Bar Client Security Fund, or “[g]rant other relief as is appropriate.” (Code Civ. Proc., § 473, subd. (c)(1).) Defendants’ opposition to Plaintiff’s MSJ/MSA was due by 6/26/26. (Code Civ. Proc., § 437c, subd. (b)(2) [20 days before the 7/16/26 hearing date].) Defendants did not file their complete “corrected” opposition and supporting papers until 7/7/26. (ROA 162, 164, 166, 168.) Plaintiff filed its reply and objections on 7/9/26. (ROA 178, 180, 182, 183.) The Court subsequently issued a tentative ruling declining to consider Defendants’ late opposition and granting the motion. At the hearing on 7/16/26, the Court indicated that Defendants should file a motion under Code Civil Procedure, section 473, subdivision (b) and continued the hearing for the summary judgment to 9/24/26. (ROA 188.) The Court finds the motion was timely filed on 8/19/26. The motion is accompanied by a declaration from Defendants’ counsel containing a straightforward admission of fault for filing Defendants’ opposition late as well as an explanation of his mistakes. (Maily Decl. ¶¶ 2-8.) The motion is also accompanied by a revised opposition and supporting papers, which were revised after the 7/16/26 hearing. (Maily Decl. ¶ 10, Exs. A-D.) Defendants have therefore established they are entitled to mandatory relief. However, Defendants may not file the revised opposition and supporting papers. Defendants filed a complete “corrected” opposition and supporting papers on 7/7/26 and Plaintiff filed its reply and objections on 7/9/26. Defendants have not explained why they should be given a third bite at the apple and further inconvenience Plaintiff and the Court. The motion is granted. The Court accepts the opposition and supporting papers that were filed late on 7/7/26. The parties should appear at the hearing prepared to discuss the amount of Plaintiff’s reasonable compensatory legal fees and costs.
11	22-01251948 <i>Subcontracting Concepts, LLC vs. Martin</i>	Motion for Summary Judgment and/or Adjudication Defendants’ motion for summary judgment is GRANTED. Defendants Estate of Albert Luongo (“Estate”) and Superior Courier & Logistics, LLC (“Superior”) move for summary judgment in their favor and against plaintiff Subcontracting Concepts, LLC (“Plaintiff”). Defendants’ request for judicial notice is GRANTED.

Plaintiff and Defendants filed written objections. (See ROA 266 & 239.) The court declines to rule on the parties' objections as none are numbered as required. (Cal. Rules of Court, rule 3.1354(b); see *Hodjat v. State Farm Mutual Automobile Ins. Co.* (2012) 211 Cal.App.4th 1, 9 [the court may decline to rule on objections not filed in conformity with the formatting rules nor is the court required to give a party a second chance at filing properly formatted objections].)

In addition, the court will not consider objections stated in Plaintiff's response to Defendants' separate statement (ROA 224) because they do not refer to specific evidentiary objections by objection number. (Cal. Rules of Court, rule 3.1354(b); see *Hodjat, supra*, 211 Cal.App.4th at p. 8.)

The court notes Defendants simultaneously filed two separate memorandums of points of authorities. One is attached to the notice of motion (ROA 218) and the other is separate document (ROA 212). Plaintiff contends this is grounds to strike the motion in its entirety but provides no legal basis for doing so. The court will disregard the memorandum attached to the notice.

Defendants argue they are entitled to summary judgment because Plaintiff cannot establish damages, Plaintiff has no evidence supporting alter ego or successor liability, the fraud claim fails because Plaintiff has no evidence fraudulent conduct by defendant Superior, and the declaratory relief claim fails because it is derivative of the failed indemnity and contract claims.

Legal Standard

"Summary judgment is proper where the evidence shows there is no triable issue of material fact and the moving party is entitled to judgment as a matter of law. To satisfy this burden, a defendant moving for summary judgment must establish that one or more of the elements of a cause of action cannot be established or that a complete defense exists to the cause of action. If the defendant meets this burden, the burden shifts to the plaintiff to show a triable issue of material fact exists as to either the particular cause of action or the proffered defense thereto. The plaintiff may not rely on mere allegations or denials of the pleadings but instead must set forth specific facts demonstrating a triable issue of material fact exists." (*McCabe v. American Honda Motor Co.* (2002) 100 Cal.App.4th 1111, 1119, citing *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 [cleaned up]; Code Civ. Proc., § 437c, subds. (c), (p)(2).) "There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (*Aguilar, supra*, 25 Cal.4th at p. 850.)

A cause of action "cannot be established" if the undisputed facts presented by the defendant prove the contrary of the plaintiff's allegations as a matter of law. (*Brantley v. Pisaro* (1996) 42 Cal. App.

4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action “cannot be established” by submitting evidence – such as discovery admissions and responses – that the plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854-55; *see also Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff’s lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; *Scheiding v. Dinwiddie Const. Co.* (1999) 69 Cal.App.4th 64, 80-81 [finding *Union Bank* rule only applies where discovery requests are broad enough to elicit all such information].)

“In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences, in the light most favorable to the opposing party.” (*Aguilar, supra*, 25 Cal.4th at p. 843 [cleaned up].) The court may not make credibility determinations or weigh the evidence, and all evidentiary conflicts must be resolved against the moving party. (*McCabe, supra*, 100 Cal.App.4th at 1119.) The moving party’s papers are strictly construed, while the opposing party’s papers are liberally construed. (*Ibid.*)

Background and Summary of Allegations

On 3/28/22, plaintiff Subcontracting Concepts, LLC filed a verified complaint against defendants Romey J. Martin (“Martin”); Orange County Courier & Logistics, LLP (“OCC”); Superior Courier & Logistics (“Superior”), Joe Zepada (“Zepada”), and DOES 1 through 20. The operative verified first amended complaint, filed 4/28/22, alleges seven causes of action for (1) express indemnity against Martin; (2) equitable indemnity alleged against all defendants; (3) contribution alleged against all defendants; (4) declaratory relief alleged against all defendants; (5) breach of contract against OCC and Superior; (6) fraud alleged against all defendants; and (7) breach of the implied covenant of good faith and fair dealing against OCC only.

On 4/23/24, plaintiff filed amendments to the complaint identifying All Around Socal Courier LLP (“All Around”), Estate of Albert Luongo (the “Estate”) aka Albert David Luongo (“Luongo”), and Marilyn P. Martin as DOES 1-3, respectively. Martin is no longer an active defendant due to bankruptcy protections. (UMF 4.) Marilyn Martin has been dismissed. (UMF 5.)

Plaintiff alleges that it incurred attorney’s fees, costs, arbitration expenses, and other damages allegedly arising from the defense and resolution of a prior labor misclassification action. (UMF 2.) Plaintiff also alleges that Superior is liable under alter ego and successor liability theories. (UMF 3.)

More specifically, in the FAC, Plaintiff alleges OCC made a written agreement with Plaintiff (“Assignment Agreement”), dated 4/18/13, to

obtain access to Plaintiff's payment processing services of independent owner/operators engaged by OCC to perform delivery services. (FAC, ¶ 9.) Martin signed a Personal Guarantee Form, dated 4/18/13. (FAC, ¶ 11.) In 2017, OCC and Plaintiff were sued in the prior action, which resulted in a significant monetary outlay by Plaintiff based on the actions of OCC and its managing agents/principals Martin and Zepada. (FAC, ¶¶ 12, 14.) Plaintiff alleges Martin is the President and owner of OCC and of Superior; Superior is an alter ego of Martin that is totally dominated by him; OCC was an alter ego of Martin; Defendants and DOE Defendants are alter egos of each other; and Superior is a successor business to OCC. (FAC, ¶¶ 3, 5, 16, 17, 19, 20.) In the first cause of action, Plaintiff alleges Superior is wholly owned and dominated by Martin, and its assets and debts should be construed as being the same as Martin's, including the indemnity owed to Plaintiff. (FAC, ¶ 26.) In the remaining causes of action alleged against Superior, Plaintiff alleges it is entitled to recover from Superior as the successor company of OCC. (FAC, ¶¶ 33, 35, 44, 54.)

Alter Ego Liability and Successor Liability

To establish alter ego liability, Plaintiff must prove two elements: (1) "unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist" and (2) "an inequitable result if the acts in question are treated as those of the corporation alone." (*Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 538, citing inter alia *Automotriz etc. De California v. Resnick* (1957) 47 Cal.2d 792, 796.) In applying the doctrine, courts consider the following factors: commingling of funds and other assets of the two entities, the holding out by one entity that it is liable for the debts of the other, identical equitable ownership in the two entities, use of the same offices and employees, use of one as a mere shell or conduit for the affairs of the other inadequate capitalization, disregard of corporate formalities, lack of segregation of corporate records, and identical directors and officers. (*Id.* at pp. 538-539.) "No one characteristic governs, but the courts must look at all the circumstances to determine whether the doctrine should be applied. Alter ego is an extreme remedy, sparingly used." (*Id.* at p. 539 [cleaned up].)

For successor liability, a company acquiring the assets of another company "does not assume the seller's liabilities unless (1) there is an express or implied agreement of assumption, (2) the transaction amounts to a consolidation or merger of the two corporations, (3) the purchasing corporation is a mere continuation of the seller, or (4) the transfer of assets to the purchaser is for the fraudulent purpose of escaping liability for the seller's debts." (*Ray v. Alad Corp.* (1977) 19 Cal.3d 22, 28.)

The undisputed material facts establish the Assignment Agreement identifies OCC as the contracting party. (UMF 12.) The Personal Guarantee was executed by Martin individually. (UMF 14.) Superior is not identified as a signatory to the Assignment Agreement or the Personal Guarantee. (UMF 13, 15.)

In discovery, Plaintiff has asserted that Superior operated as an alter ego or successor entity of OCC and/or Martin. (UMF 16.) However, Plaintiff has failed to identify evidence supporting alter ego liability against Superior. (UMF 17, 33.) Namely, Plaintiff failed to produce evidence of commingling of funds, disregard of corporate formalities, assumption of liabilities by Superior, transfer of assets from OCC to Superior, or undercapitalization. (UMF 18-22.)

Nor has Plaintiff produced evidence supporting successor liability against Superior. (UMF 34.) Most importantly, Plaintiff has not produced evidence of the predicate acquisition or transfer of assets from OCC to Superior. (UMF 21.) Plaintiff has also not produced evidence of assumption of liabilities by Superior, fraudulent transfer, or Superior assumed obligations under the Assignment Agreement or Personal Guarantee. (UMF 20, 23, 35.)

Plaintiff contends it has produced evidence of alter ego and successor liability. Plaintiff points to evidence that Martin called Plaintiff's Senior Vice President of Customer Relations, Dominick Simone, to solicit business on behalf of Superior and purported to exercise decision making authority on Superior's behalf. (Plaintiff's Response to UMF 17.) Plaintiff also relies on a report from a third party investigator who determined that Martin was "employed with/operating Superior Courier," Superior was using phone numbers previously associated with OCC, and Martin can be reached at those numbers. (Plaintiff's Response to UMF 17.) These facts do not establish alter ego or successor liability. At most, they establish Martin once operated OCC, he was later employed by Superior with some decision making authority, and Superior uses phone numbers once associated with OCC. This evidence does not establish Martin's ownership of Superior or a transfer/acquisition of assets (fraudulent or otherwise), assumption of liabilities, consolidation or merger of the two companies, or a mere continuation of OCC.

In fact, Plaintiff's witness, Dominick Simone, confirms that Martin represented himself as an employee of Superior rather than an owner. Simone attests that Martin stated he was "working with the owner of [Superior] Albert Luongo" but that "he was not an owner of Superior just an employee." (Simone Decl. ¶ 3.) Simone states the same in an email the same day to Plaintiff's President, Pete Fidopiastis, confirming the call. (Simone Decl. ¶ 3, Ex. F.) While Simone attests that he did not believe Martin (Simone Decl., ¶ 3), he does not explain why he did not believe Martin. Further, Plaintiff submitted Superior's Operating Agreement which identifies Luongo as Superior's 100% member and does not attribute any ownership interest to Martin. (Fidopiastis Decl., Ex. A.) While the Operating Agreement is unsigned, it supports the conclusion that Martin was Superior's employee and not its owner.

Plaintiff attempts to dispute Defendants' material facts by asserting discovery has not yet concluded, and Defendants' have failed to comply with their discovery obligations. Plaintiff complains that Defendants'

		discovery responses have been deficient, they have failed to provide crucial evidence, and they have failed to admit or deny essential basic facts. (See Plaintiff's Responses to UMF 17-22.) Even assuming this to be true, Plaintiff's recourse was to meet and confer with Defendants and file discovery motions if necessary. Given this case has been ongoing since 2022, Plaintiff has had ample opportunity to do so. Plaintiff's lack of diligence does not create triable issues of material fact. Plaintiff's reliance on its verified FAC as evidence to support alter ego and successor liability is unavailing. (See Plaintiff's Response to UMF 33.) "[A] party cannot rely on the allegations of his own pleadings, even if verified, to make or supplement the evidentiary showing required in the summary judgment context." (<i>College Hosp., Inc. v. Sup.Ct. (Crowell)</i> (1994) 8 Cal.4th 704, 720, fn. 7.) As to the Estate, Plaintiff's evidence only establishes Luongo owned Superior. There is no evidence he personally assumed OCC's obligations, guaranteed Martin's obligations, or received OCC assets to frustrate Plaintiff's collection efforts, or made any representation to Plaintiff concerning the 2013 agreements. Defendants have established there is no triable issue of material fact, and they are entitled to judgment as a matter of law. As each cause of action is based on alter ego and successor liability, the court need not address Defendants' other arguments. The motion is granted.
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